AUSTRALIAN COMPETITION & CONSUMER COMMISSION

Brown & Hurley - Schmitz Cargobull and Freighter Group

MN-30033

Phase 1 Determination

Acquisition may be put into effect

30 October 2026

1. Determination and statement of reasons

Notified acquisition	Brown & Hurley Group Pty Ltd (**Brown & Hurley**) proposes to invest in Schmitz Cargobull Victoria Holding (**SCBV**), through its wholly owned subsidiary B&H Trailers Pty Ltd **(BH**). SCBV is a special purpose vehicle owned by Schmitz Cargobull Australia Holding Pty Ltd (**SCBA**), a wholly owned subsidiary of Schmitz Cargobull AG. BH proposes to provide a convertible note and loan facility to SCBV (the **Acquisition)**, to fund SCBV's increased shareholding in Freighter Group Pty Ltd (**Freighter Group**). If the note is converted, BH will hold a 25% interest in SCBV and an indirect minority interest in Freighter Group.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Brown & Hurley, is an Australian truck and trailer dealer group operating in Queensland and northern New South Wales. It sells new and used trucks and heavy-duty trailers, and provides servicing, repairs and spare parts**)**. The target, SCBV, is the majority owner of Freighter Group. Freighter Group is an Australian manufacturer and supplier of heavy-duty trailers. Freighter Group supplies trailers nationally through its network of dealerships, and through independent third-party multi-brand dealerships. It also provides aftersales services from its dealerships. Schmitz Cargobull AG, the parent company of the target, is a European trailer manufacturer. Its former Australian subsidiary, Schmitz Cargobull Pty Ltd, ceased operations on 31 May 2025.
Overlap and supply chain relationship between the Parties	Brown & Hurley and Freighter Group overlap in the supply of heavy-duty trailers and servicing, repairs and spare parts. Brown & Hurley and Freighter Group also have a theoretical vertical supply chain relationship in that Freighter Group is a trailer manufacturer and supplier, whereas Brown & Hurley is active only at the supply level. Brown & Hurley does not currently deal Freighter Group Trailers.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third partes, and publicly

	available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The market share aggregation resulting from the Acquisition in the supply of heavy-duty trailers and servicing, repairs and spare parts is estimated to be low. • Brown & Hurley and SCBV would continue to face competition from multiple alternative suppliers of heavy-duty trailers and aftersales services in QLD and NSW. • Brown & Hurley and SCBV would be unlikely to have the ability and incentive to foreclose rival trailer dealers' access to trailers, given the presence of multiple alternative manufacturers of heavy-duty trailers.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act